

GoAccess Services AgreementInitial Duration: **12 months**

The Agreement is made by and between:

GoAccess LLC, a limited liability company, with its office located at: 8 The Green STE #20370
Dover, DE, 19901 - hereinafter referred to as "Provider"

and

_____ an entity with its office located at
_____ - hereinafter referred to as
"Channel Partner"

Provider and Channel Partner are hereinafter individually referred to as "Party" and jointly as
"Parties".

Whereas:

- A. Provider is a professional provider of visitor management software services
- B. Channel Partner wishes to acquire visitor management software services
- C. Parties wish to lay down the terms and conditions of their cooperation in the Agreement.

The Parties have agreed as follows:

1. Services:

- a. The Agreement constitutes the legal framework between the Parties based on which Provider provides to Channel Partner non-exclusive, terminable right to use the GoAccess website and related services ("Site"), the servers the Site is stored on and the computer files stored on the servers (collectively, the "Services")
- b. Provider may amend the Agreement from time-to-time, but only with the prior notification and by written agreement of Channel Partner, if said written agreement is not provided by Channel Partner, said amendments will have no effect towards Channel Partner
- c. Provider provides Channel Partner visitor management software for sole purpose of convenience and no guarantee of security nor safety is given as a result of these services. A list of functionality is as follows:
 - i. Mobile Application for residents for management of visitors
 - ii. Application for Channel Partner's administration to manage resident accounts, administrative accounts, and visitor lists.
 - iii. Processing of vehicles entering the premises.
- d. Channel Partner has opted for License Plate Recognition Analytics for  lanes:

- i.
- e. Amenity Access Control System for [REDACTED] entries.
- f. Channel Partner has opted for access control amenity access for [REDACTED] doors.
- g. Should any Services be added after the Service start date, they will be signed and dated in Appendix A.
- h. Service Start Date: Services will begin upon signature of this agreement.
- i. Because the Services rely on Channel Partner's third-party internet service provider and local network setup for Users and Administrators, any limitations, incorrect settings, incorrect configuration or bandwidth constraints in those services will also limit the manner in which Channel Partner can use the Services. Provider aims to provide the Services in scope and quality as specified in this Agreement.

2. Hardware and Installation:

- a. Channel Partner is responsible for securing and installing all computer and networking hardware required to run GoAccess services, including but not limited to cameras, access control panels, desktop computers, internet, scanners, printers, and paper.
- b. Provider shall acquire [REDACTED] PDK Access Control Panels, [REDACTED] Nvidia LPR Servers that Channel Partner will install, hereinafter referred to as "control equipment."
- c. Channel Partner will contract a third party provider to install all equipment and ensure they are in working order to run GoAccess.
- d. Channel Partner is responsible for all maintenance, repair, and replacement of hardware.

3. Pricing and Billing:

- a. Channel Partner agrees to pay Provider for the Services listed within this agreement with the first quarterly payment due upon the signing of this agreement:
 - i. GoAccess Platform: \$____/month
 - ii. A.I. License Plate Recognition ([REDACTED] Lanes): \$____/month
 - iii. Smart Door Access Subscription ([REDACTED] Doors): \$____/month
- b. Channel Partner agrees to pay Provider a one-time fee of \$____ for control equipment, due upon the signing of this agreement.
- c. Channel Partner agrees to pay Provider a one-time fee of \$____ for the data export/import and resident marketing/onboarding services, with payment due upon signing of this agreement.
- d. Should Channel Partner require custom software development specially unique to Channel Partner's needs, Provider will develop these features at a fixed rate of \$150/hour, assuming the requested work is within the provider's capabilities.
- e. Remittance Detail:

- i. Provider will invoice Channel Partner for agreed Services with the first quarterly payment due upon the signing of this agreement.
 - ii. Services will be invoiced quarterly.
- f. Financial Details:
 - i. Available method of payment: Direct Deposit or Check
- g. The software license is billed quarterly, and invoices for the upcoming quarters are issued on the 15th of the month prior to the start of each quarter. Accordingly, invoices for Q1, Q2, Q3, and Q4 are sent out on December 15th, March 15th, June 15th, and September 15th, respectively, and are due at the beginning of each quarter.
 - i. Initial license payment will be deducted from the first quarterly invoice.
- h. A payment will be deemed late if received more than 30 calendar days past the due date for the quarter. In such cases, an additional charge of \$1,000/overdue month will be incurred, accruing monthly until full payment is received.
- i. Channel Partner agrees to pay for the entirety of Provider services that are agreed in writing.

4. Vendor Program

- a. Channel Partner has the option to enable the GoAccess vendor registration platform, which enables vendors to register and purchase passes for access into the community. Channel Partner has the ability to manage and approve vendor accounts, passes, and access credentials.
 - i. Opt in ____
 - ii. Opt out ____
- b. Provider shall assist in setting up a new Stripe account for Channel Partner. Vendor payments will be processed through this Stripe account, and Channel Partner shall be responsible for all Stripe fees.
- c. Provider shall retain 20% of the total Vendor transaction amounts as compensation, and the remaining balance, after Stripe transaction fees, will be transferred directly to Channel Partner's designated bank account from Stripe.

5. Speeding Citation Program

- a. Channel Partner has the option to utilize the GoAccess speed detection and citation program ("Program") for enforcement of community speed regulations. Please mark option here:
 - i. Opt in ____
 - ii. Opt out ____
- b. Channel Partner shall remit to Provider an amount equal to Twenty percent (20%) of the total billed speeding citation fees generated through the Program. Compensation shall be calculated and remitted monthly.
- c. Channel Partner shall provide Provider with a monthly report detailing all citations issued during the reporting period. The report shall include the number of citations issued, amounts billed, and amounts collected.

- d. Channel Partner shall maintain complete and accurate records relating to citations issued, billing, and collections under the Program.
- e. Provider shall have the right, upon reasonable notice, to review and audit such records, including supporting documentation reasonably necessary to verify amounts billed and collected.

6. Confidentiality:

- a. Each Party Agrees that:
 - i. all Confidential Information will remain the exclusive property of the disclosing party, and the receiving party will not use any Confidential Information for any purpose other than in furtherance of this Agreement;
 - ii. it will do its utmost to ensure that Representatives will respect the confidential character of the Confidential Information;
 - iii. it will do its utmost to ensure that Representatives do not, copy, publish, disclose to others or use the Confidential Information (other than pursuant to the terms of this Agreement);
 - iv. it will return all hard and soft copies of Confidential Information upon written request by the other Party.
- b. Each Party agrees that it will make every reasonable effort to ensure that Confidential Information of the other Party is kept within its control and that it is securely protected against theft or unauthorized access. Under all circumstances each Party shall maintain its security, integrity and confidentiality measures to at least the same standard that it applies to its own Confidential Information.

7. Liability:

- a. The liability of Provider, including its officers, directors, employees, affiliates, agents, licensors, representatives, attorneys, and business partners (collectively, the "Provider Parties"), to any party for any claims, damages, or losses arising out of or in connection with this Agreement, regardless of the type of action or the basis of the claim (whether in contract, tort, including negligence, or otherwise), shall be limited to the total amount of fees paid by Channel Partner to Provider under this Agreement in the twelve (12) months preceding the event giving rise to such liability.
- b. Disclaimer of Indirect and Consequential Damages: In no event shall Provider or the Provider Parties be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages, including but not limited to loss of profits, loss of business, loss of use, loss of data, or loss of goodwill, arising out of or in connection with this Agreement, even if Provider has been advised of the possibility of such damages.
- c. No Liability for Certain Events: Provider and the Provider Parties shall not be liable for, and shall be held harmless against, any claims, damages, losses, or

liabilities resulting from or related to theft, injury, or death that occurs as a result of the services rendered to Channel Partner or Channel Partner's constituents, including but not limited to residents, renters, vendors, visitors, contractors, and employees. This exclusion applies irrespective of the form of action, whether based on contract, tort (including negligence), strict liability, or any other legal or equitable theory.

- d. Indemnification: Channel Partner agrees to indemnify, defend, and hold harmless Provider and the Provider Parties from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to (i) Channel Partner's use of the services, (ii) any breach by Channel Partner of this Agreement, and (iii) any violation by Channel Partner of any law or the rights of a third party.

8. Force Majeure

- a. Neither Party shall be liable for any failure to perform its obligations under this Agreement if such failure is caused by events outside its reasonable control, including, but not limited to, acts of God, war, terrorism, natural disasters, pandemics, labor strikes, or interruptions in telecommunications, power, or transportation ("Force Majeure Events"). Upon the occurrence of any Force Majeure Event, the affected Party shall notify the other Party as soon as reasonably practicable and shall exert reasonable efforts to resume performance.
- b. During the duration of any Force Majeure Event affecting performance, the obligations of the affected Party under this Agreement will be suspended and the time for performance extended for the duration of the event plus a reasonable period to resume normal operations.

9. Term and Termination:

- a. This Agreement commences on the date signed by both Parties and continues until all subscriptions hereunder have expired or have been terminated. Unless otherwise specified, each subscription shall be valid for 12 months from the Service Start Date specified above.
- b. Subscriptions will automatically renew for additional periods of one year, unless either party gives the other notice of non-renewal at least 90 days before the end of the relevant subscription term.

This Agreement represents the entire understanding between the parties concerning the subject matter hereof, and supersedes all prior agreements and understandings, whether written or oral. Each party has read and understands this Agreement and agrees to be bound by its terms. This Agreement may only be amended in writing and signed by both parties. The undersigned hereby represent and warrant that they are duly authorized and have legal capacity to execute and deliver this Agreement. This Agreement is binding upon and will inure to the benefit of the parties hereto and their respective heirs, successors, and assigns.

Provider - GoAccess LLC:

Name and Title

Date

Signature

Channel Partner - _____:

Name and Title

Date

Signature

Appendix A - Service Scope Additions to Initial Agreement: